

Plaintiffs' further argue that Defendant cannot make the greater showing of interest of justice required for a cross-complaint against third parties. (Opposition at p. 8: 6-10.) Plaintiffs rely on a citation from the Rutter Group Practice Guide for their position. However, the proposed Cross-Complaint involves the same business relationship and dealings as alleged in Plaintiff's Complaint; thus, the Cross-Complaint will not unreasonably burden or complicate Plaintiff's lawsuit. (*See Garcia v. Roberts* (2009) 173 Cal.App.4th 900, 910 [ordinarily, no prejudice will result from an amendment that is based on the same general set of facts].)

Plaintiff Must Combine His Crossclaims in Exhibit 1 with his Cross-Complaint in Exhibit B

Courts must be able to manage their dockets consistent with the demands of all matters pending before them and in such a way as to provide broad access to justice. Courts have "inherent equity, supervisory and administrative powers" to "control litigation before them" and these powers "are derived from the state Constitution and are not confined by or dependent on statute." (*Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377.) Pursuant to these inherent powers, courts have been permitted to "fashion[] new forms of procedures when required to deal with the rights of the parties and to manage the caseload of the court." (*Id.* at p. 1377.)

To limit confusion and promote clarity, Plaintiff shall combine his proposed Cross Claims included in Exhibit 1 with his proposed Cross-Complaint in Exhibit B.

Conclusion

The Court is unable to grant this motion at this time due to the procedural defects outlined above. As analyzed above, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Motion is continued to July 31, 2026, at 9:00 a.m., Department 32. Defendant's papers are due 14 court days before the hearing and Plaintiffs' opposition, if any, are due 9 court days before the hearing.**

6. 9:00 AM CASE NUMBER: C24-02519
CASE NAME: SALLY NICHOLS, S.A. VS. COLLINS & ASSOCIATES, LLC
*HEARING ON MOTION IN RE:
FILED BY: NICHOLS, S.A., SALLY ANN
TENTATIVE RULING:

The **Plaintiffs'** unopposed motion to set aside the defaults taken against Defendants Collins & Associates, LLC and Cecil Andrew Collins is granted for good cause shown. **Plaintiffs** must file an amended complaint within ten days of this order.

7. 9:00 AM CASE NUMBER: C24-02701
CASE NAME: ALYSS DORESE VS. AIDEN CIANI
*HEARING ON MOTION IN RE: EXPUNGE THE NTC OF LIS PENDENS
FILED BY:
TENTATIVE RULING:

Defendant Aidan Ciani's motion to expunge the lis pendens recorded on December 31, 2025

is **denied as moot**. The finds that Ciani is the prevailing party, but he has not provided evidence of allowable fees or costs.

On October 8, 2024, Plaintiff Dorese filed a complaint against Defendant Aiden Ciani for various landlord-tenant related torts, including breach of the warranty of habitability and related causes of action, a rent increase in violation of the Richmond Rent Control Ordinance and retaliation. Dorese alleges that she had a residential tenancy for a property in Richmond starting in 2007.

On December 31, 2025, Dorese recorded a lis pendens on the property. Ciani filed this motion to expunge the lis pendens on January 15, 2026, as a self-represented party. Dorese recorded a notice of withdrawal of the lis pendens on February 5, 2026. Dorese recorded a second lis pendens on the property on January 27, 2026. However, that lis pendens references a different case, *Dorese v. Ciani*, C26-00167.

Since Dorese withdrew the lis pendens that is the subject of the motion, the request to expunge is moot. However, the Court must still consider the issue of attorney fees and costs. “[T]he withdrawal of a lis pendens while a motion to expunge is pending does not automatically preclude recovery of attorney fees to the moving party. Rather, we adopt a practical approach to determine the prevailing party based on the trial court’s determination of which party realized its objectives in the proceeding. Such a determination requires the trial court to consider the merits of the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust.” (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1014; see also Code of Civil Procedure section 405.38 [prevailing party entitled to fees and costs].)

A motion to expunge a lis pendens can be based upon a finding “that the pleading on which the notice is based does not contain a real property claim” or where “the claimant has not established by a preponderance of the evidence the probable validity of the real property claim”. (Code of Civil Procedure sections 405.31 and 405.32.) Ciani moved on both grounds.

A “ ‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility.” (Code Civ. Proc., § 405.4.) When determining if the complaint involves a real property claim, “the court must engage in a demurrer-like analysis. ... [R]eview of an expungement order under section 405.31 is limited to whether a real property claim has been properly pled by the claimant. [Citations.]” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647-648.)

Looking at the merits of the motion, the original complaint did not seek possession or title to the property and thus, no real property claim alleged was this case. Dorese argues that recent facts have changed, but she did not amend her complaint before the December 2025 lis pendens was recorded. The Court also notes that it has not reviewed the new complaint filed by Dorese to determine whether that complaint states a real property claim because that issue is not presently before the Court.

Following *Castro*, the Court finds that the motion to expunge was meritorious and after it was filed, Dorese withdrew the lis pendens. Given this situation, Ciani is the prevailing party on this motion. Further, Plaintiff did not have substantial justification to record a lis pendens in this case, based upon the complaint as presently alleged.

Here, Ciani seeks \$360 in paralegal expenses and \$2,100 to compensate Ciani for the time he spent preparing this motion. As a self-represented party, the Court cannot award Ciani fees for his work on this motion. (*Trope v. Katz* (1995) 11 Cal.4th 274, 285.) Paralegal fees are sometimes recoverable as part of an attorney fee award, but when award such fees it is done in connection with the services of an attorney. (See *Guinn v. Dotson* (1994) 23 Cal.App.4th 262, 269; *Roe v. Halbig* (2018) 29 Cal.App.5th 286, 312.) Without an attorney to supervise them, paralegals can still assist with some tasks such as filing and formatting documents. (See, Bus & Prof Code § 6450 [paralegals cannot provide legal advice, among other limitations].) It is not clear from Ciani's declaration what tasks the paralegal assisted with and therefore, the Court cannot determine if they are recoverable as costs.

Defendant Ciani is ordered to file and serve submit a supplemental declaration detailing whether the paralegal spent any time on filing or formatting documents, and how much time was spent on those tasks. That declaration must be filed and served on or before noon on April 10, 2026. Plaintiff may file and serve objections to this declaration on or before noon on April 24, 2026. The motion is declined as moot, but the court will take the matter of costs for paralegal work under submission.

8. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
***HEARING ON MOTION IN RE: FOR PLAINTIFF TO FILE SECOND AMENDED COMPLAINT**
FILED BY: SHORT, WILTON C
TENTATIVE RULING:

At a Case Management Conference with the parties on March 10, 2026, the court moved the hearing on Defendants' Demurrer to the First Amended Complaint in this matter to June 5, 2026.

The court on its own motion moved the hearing on Defendants' Demurrer to the First Amended Complaint from June 5, 2026 to July 24, 2026 at 9:00 a.m. due to the unavailability of the Court on June 5, 2026.

On March 10, 2026 the court was unaware of the Plaintiff's instant motion to file a Second Amended Complaint, which was filed on September 18, 2025 and eventually set for hearing on March 27, 2026.

Although this motion is unopposed, there does not appear to be a proof of service of the moving papers on Franklin Credit Management Corp. nor on Bosco Credit LLC.

Due to the potential for inconsistency and inefficiency in having these motions heard on different dates, the court on its own motion moves the hearing on the Plaintiff's motion to file a Second Amended Complaint to July 24, 2026 at 9:00 a.m. in Department 32. Plaintiff is ordered to serve all defendants with notice of motion, motion, memorandum of points and authorities, declaration[s] in